BILL NO. 41

Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

BANGSAMORO TRANSITION AUTHORITY
(SECOND REGULAR SESSION)

BANGSAMORO AUTONOMY ACT NO. 36

Begun and held in Cotabato City, on Thursday, the 15th day of September, 2022.

AN ACT
ESTABLISHING A REVOLVING FUND FOR THE PAYMENT OF SALARIES, COMPENSATION, AND EMOLUMENTS OF WORKERS AND PERSONNEL OF NATIONALLY FUNDED PROGRAMS DEPLOYED IN THE BANGSAMORO AUTONOMOUS REGION IN MUSLIM MINDANAO, PROVIDING FUNDS THEREFOR, AND FOR OTHER PURPOSES

Be it enacted by the Bangsamoro Transition Authority in Parliament assembled:

SECTION 1. ***Short Title.*** – This Act shall be known as the "Bangsamoro Revolving Fund Act of 2023".

SEC. 2. ***Declaration of Policy.*** – It is the policy of the Bangsamoro Government to provide, maintain, and ensure the delivery of basic and responsive health programs, quality education, appropriate services, and livelihood opportunities, among others, to the Bangsamoro people and other inhabitants of the Bangsamoro. It shall likewise be the policy of the Bangsamoro Government to afford workers in the Bangsamoro full protection and promotion of their general welfare to ensure the efficient and effective delivery of services and programs to the Bangsamoro constituents. Thus, it shall be the policy of the Bangsamoro Government to protect the interests of its workers and personnel, including those deployed in the region under programs funded by the National Government, by providing support and developing a mechanism that will ensure timely payment of authorized salaries, compensation, and emoluments for services rendered by them.

SEC. 3. ***Establishment of the Bangsamoro Revolving Fund for the Nationally-Funded Programs.*** – There is hereby established the Bangsamoro Revolving Fund for nationally-funded programs, hereinafter referred to as the "Fund", for the payment of salaries, compensation, and emoluments of nationally-funded workers and personnel directly supervised by the Bangsamoro Autonomous Region in Muslim Mindanao (BARMM) ministries, agencies, or offices implementing nationally-funded programs. The Fund shall be utilized to ensure the timely payment of such salaries, compensation, and emoluments in case of delay in the transfer or downloading of funds by concerned national government agencies.

SEC. 4. ***Administration and Management of the Fund.*** – The Fund shall be administered and managed by the Ministry of Finance, and Budget and Management (MFBM) in accordance with its cash

management and disbursement system and procedures subject to all existing government accounting and auditing rules and regulations. The Fund shall be available for release by MFBM only for the purpose herein specified upon request by the concerned BARMM ministry, agency, or office.

The MFBM shall ensure the availability to the ministry, agency, or office of the amount requested for the Fund immediately after the effectivity of this Act. It shall provide a mechanism by which the amounts utilized by the ministry, agency, or office shall be reimbursed immediately to the Fund once the concerned national government agency has transferred or downloaded the corresponding national funds therefor.

SEC. 5. ***Roles and Responsibilities.*** – The concerned ministries, agencies, or offices shall ensure the fulfillment of their roles and responsibilities required for the downloading of funds from the National Government to the Bangsamoro Government. Nothing in this Act shall be construed as the Bangsamoro Government assuming the responsibilities of the National Government with respect to the salaries, compensation, and emoluments of the nationally funded programs.

SEC. 6. ***Dissolution or Reversion of the Fund.*** – The Fund shall not be automatically dissolved upon the discontinuance of the implementation of nationally-funded programs in the BARMM, the appropriation thereof in the General Appropriations Act of the Bangsamoro (GAAB), or the cessation of hiring or renewal of deployed workers and personnel.

The Fund shall only be dissolved and the amount reverted to the Bangsamoro Treasury when the ministries, agencies, and offices authorized to draw the funds therefrom by the MFBM have stopped submitting a request therefor for at least two fiscal years. Such reversion shall be reported by the MFBM to the Chief Minister in the Parliament through the Committee on Finance, Budget, and Management.

SEC. 7. ***Appropriation.*** – The amount of One Billion Pesos (Php1,000,000,000.00) revolving fund is hereby appropriated for the implementation of this Act chargeable against the Contingent Fund.

SEC. 8. ***Implementing Rules and Regulations.*** – The MFBM shall issue the implementing rules and regulations to govern the request, utilization, and disbursement of funds pursuant to the provisions of this Act within one (1) month after its complete publication.

SEC. 9. ***Report on the Utilization of the Fund.*** – An official quarterly report on the releases, obligations, and disbursements shall be submitted by the MFBM to the Parliament through the Speaker either in printed form or by way of electronic documents.

SEC. 10. ***Separability Clause.*** – In the event any provision of this Act is declared unconstitutional, the validity of the other provisions shall not be affected and shall continue to be in full force and effect.

SEC. 11. ***Repealing Clause.*** – All provisions of existing acts, laws, orders, rules, and regulations, or parts thereof, which are inconsistent with the provisions of this Act are hereby repealed, amended, or modified accordingly.

SEC. 12. ***Effectivity.*** – This Act shall take effect fifteen (15) days after its publication in a newspaper of regional circulation in the Bangsamoro Autonomous Region.

ATTY. PANGALIAN M. BALINDONG
Speaker

This Act was passed by the Bangsamoro Parliament on *Shawwal* 26, 1444/May 17, 2023.

PROF. RABY B. ANGKAL
Secretary General

APPROVED:

AHOD BALAWAG EBRAHIM
Chief Minister
Date: MAY 22, 2023

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